

1 _____ BILL NO. _____

2 INTRODUCED BY _____

3

4 A BILL FOR AN ACT ENTITLED: "AN ACT GENERALLY REVISING LAWS RELATED TO THE MONTANA
5 PUBLIC SAFETY OFFICER STANDARDS AND TRAINING COUNCIL; TRANSFERRING THE JURISDICTION
6 OF THE MONTANA PUBLIC SAFETY OFFICER STANDARDS AND TRAINING COUNCIL FROM THE
7 DEPARTMENT OF JUSTICE TO THE DEPARTMENT OF LABOR AND INDUSTRY; ESTABLISHING A
8 BOARD STRUCTURE FOR THE MONTANA PUBLIC SAFETY OFFICER STANDARDS AND TRAINING
9 COUNCIL; REQUIRING THE COUNCIL TO SET FEES; PROVIDING THAT FEES MUST BE PAID BY THE
10 STATE FOR EMPLOYEES OF THE STATE AND THE STATE GENERAL FUND FOR EMPLOYEES OF
11 LOCAL GOVERNMENTS; STANDARDIZING BOARD DUTIES AND PROCESSES COMMENSURATE WITH
12 OTHER PROFESSIONAL BOARDS; EXEMPTING THE MONTANA PUBLIC SAFETY OFFICER STANDARDS
13 AND TRAINING COUNCIL FROM CERTAIN PROCESSES IN TITLE 37, MCA; ESTABLISHING A STATE
14 SPECIAL REVENUE FUND; PROVIDING DEFINITIONS, PROVIDING RULEMAKING AUTHORITY;
15 ESTABLISHING AND REVISING REPORTING REQUIREMENTS; AMENDING SECTIONS 5-11-222, 7-4-
16 2904, 7-4-2905, 7-31-201, 7-31-202, 7-31-203, 7-32-201, 7-32-213, 7-32-303, 7-32-4112, 19-7-101, 20-7-1335,
17 27-16-801, 41-5-1808, 44-2-117, 44-4-902, 44-10-204, 44-14-101, 46-6-507, 46-18-111, 46-23-1003, AND 61-
18 3-224, MCA; REPEALING SECTIONS 2-15-2029, 44-4-401, 44-4-402, 44-4-403, 44-4-404, AND 44-4-408,
19 MCA; AND PROVIDING A DELAYED EFFECTIVE DATE."

20

21 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

22

23 NEW SECTION. **Section 1. Public safety officer standards and training council.** (1) In
24 accordance with 37-1-123, there is a Montana public safety officer standards and training council.

25 (2) The council consists of 13 members:

26 (a) one state government law enforcement representative;

27 (b) one chief of police, who may be appointed based on recommendations from the Montana
28 association of chiefs of police;

- 1 (c) one sheriff, who may be appointed based on recommendations from the Montana sheriffs and
2 peace officers association;
- 3 (d) one representative from the department of corrections established in 2-15-2301;
- 4 (e) one local law enforcement officer in a nonadministrative position, who may be appointed based
5 on recommendations from the Montana police protective association;
- 6 (f) one detention center administrator or detention officer;
- 7 (g) one Montana-certified tribal law enforcement representative;
- 8 (h) one county attorney, who may be appointed based on recommendations from the Montana
9 county attorneys association;
- 10 (i) two members from the board of crime control established in 2-15-2008;
- 11 (j) one misdemeanor probation officer, as defined in 46-23-1001, who is certified by the board and
12 who may be appointed based on recommendations from an association representing misdemeanor probation
13 officers; and
- 14 (k) two public members who are informed and experienced in the subject of law enforcement.
- 15 (3) As used in this part, the term "council" has the same meaning as the term "board" as provided
16 in 37-1-130.
- 17 (4) The council is allocated to the department for administrative purposes only as prescribed in 2-
18 15-121.

19
20 **NEW SECTION. Section 2. Definitions.** For the purposes of [sections 2 through 7], the following
21 definitions apply:

- 22 (1) "Council" means the Montana public safety officer standards and training council provided for in
23 [section 1].
- 24 (2) "Department" means the department of labor and industry established in 2-15-1701.
- 25 (3) "Public safety officer" means:
- 26 (a) a corrections officer who is employed by the department of corrections established in 2-15-
27 2301 and who has full-time or part-time authority or responsibility for maintaining custody of inmates in a state
28 correctional facility for adults or juveniles;

(b) a detention officer who is employed by a county and who has full-time or part-time authority or responsibility for maintaining custody of inmates in a detention center as defined in 7-32-2241 or a youth detention facility as defined in 41-5-103;

(c) a peace officer as defined in 46-1-202;

(d) a department of transportation employee appointed as a peace officer pursuant to 61-12-201;

(e) a law enforcement officer or reserve officer as the terms are defined in 7-32-201;

(f) a public safety communications officer as defined in 7-31-201;

(g) a probation or parole officer who is employed by the department of corrections pursuant to 46-23-1002;

(h) a person subject to training requirements pursuant to 44-2-113 or 44-4-902; and

(i) any other person required by law to meet the qualification or training standards established by the council.

NEW SECTION. Section 3. Council duties -- fees-- rulemaking authority. (1) For public safety officers defined in [section 2], the council shall:

(a) establish basic and advanced qualification and training standards for employment in accordance with:

(i) 7-4-2904 and 7-4-2905 for a coroner;

(ii) 7-31-202 for a public safety communications officer;

(iii) 7-32-213 and 7-32-214 for a reserve officer;

(iv) 7-32-303 for a peace officer; and

(v) 46-23-1003 for a probation and parole officer;

(b) conduct and approve training in accordance with:

(i) 7-4-2905 for a coroner; and

(ii) 46-23-1003 for a probation and parole officer; and

(c) provide for certification or recertification in accordance with:

(i) 7-31-203 for a public safety communications officer;

(ii) 7-32-240 for a reserve officer;

1 (iii) 7-32-303 for a peace officer; and

2 (iv) 61-12-201 for a department of transportation employee appointed as a peace officer.

3 (2) The council may waive or modify a qualification or training standard for good cause.

4 (3) The council may not revoke a public safety officer's certification solely based on a public safety
5 officer's mental illness unless, due to the mental illness, a physical or mental condition exists that, even with
6 reasonable accommodation:

7 (a) substantially limits the officer's ability to perform the essential duties of a public safety officer; or

8 (b) poses a direct threat to the health and safety of the public or fellow public safety officers.

9 (4) (a) For each profession listed in subsection (1), the council shall adopt fees in accordance with
10 37-1-134 for:

11 (i) application for certification;

12 (ii) examinations;

13 (iii) initial certification; and

14 (iv) certification renewal.

15 (b) Fees imposed under subsection (4)(a) must be paid by the employing state agency for state
16 employees and by the state general fund for employees of a local government.

17 (5) The council may adopt rules necessary to implement the provisions of [sections 2 through 7].
18

19 **NEW SECTION. Section 4. Appointing authority responsible for applying standards.** (1) It is the
20 responsibility of a public safety officer's appointing authority to apply the employment standards and training
21 criteria established by the council pursuant to [sections 2 through 7], including but not limited to requiring the
22 successful completion of minimum training standards within 1 year of the public safety officer's hire date and
23 terminating the employment of a public safety officer for failure to meet the minimum standards established by
24 the council pursuant to [sections 2 through 7].

25 (2) (a) A public safety officer's appointing authority may apply to the council on behalf of the public
26 safety officer for an extension to complete the minimum training standards. The extension may not exceed 180
27 days. The application must explain the circumstances that make the extension necessary.

28 (b) When granting an extension, the council may consider the following factors:

- 1 (i) illness of the public safety officer or a member of the public safety officer's immediate family;
2 (ii) lack of reasonable access to the basic equivalency course;
3 (iii) an unreasonable shortage of personnel in the public safety officer's department; and
4 (iv) any other factors the council considers relevant.

5 (3) (a) If a public safety officer who has not yet completed the minimum training standards is
6 ordered to state or federal military duty within 1 year of the officer's hire date, the officer's employing agency
7 shall notify the council within 10 days of the officer's departure for military duty. The public safety officer's 1-
8 year period to complete minimum training standards must be stayed.

9 (b) Within 10 days of the public safety officer's return to the employing agency from military duty,
10 the officer's employing agency shall notify the council. The public safety officer's 1-year period to complete
11 minimum training standards must then resume.

12
13 **NEW SECTION. Section 5. Unprofessional conduct -- rulemaking.** (1) The provisions of 37-1-316
14 do not apply to a public safety officer or applicant for certification by the council under [sections 2 through 7].

- 15 (2) The council may adopt rules to establish unprofessional conduct of a public safety officer.
16

17 **NEW SECTION. Section 6. Investigations report.** The council shall provide a quarterly written
18 report on pending investigations to the law and justice interim committee in accordance with 5-11-210. The
19 report must protect the privacy rights of the individuals involved and must provide for each investigation:

- 20 (1) when it was opened;
21 (2) the process that remains to be completed; and
22 (3) the likely timing for resolution of the investigation.
23

24 **NEW SECTION. Section 7. Public safety officer standards and training account.** (1) There is an
25 account in the state special revenue fund to be used by the department of labor and industry on behalf of the
26 Montana public safety officer standards and training council established in [section 1].

- 27 (2) The council may apply for any available grants, and may accept gifts, grants, donations,
28 contributions, and other transfers, including money appropriated by the legislature in accordance with 44-10-

1 204.

2 (3) Money in the account may be used by the department to fund the council.

3 (4) The department may adopt rules to implement this section.

4 (5) There must be deposited in the account money received pursuant to 61-3-321(23)(b)(i).

5

6 **Section 8.** Section 5-11-222, MCA, is amended to read:

7 **"5-11-222. Reports to legislature.** (1) (a) Except as provided in subsections (1)(b) and (5), a report
8 to the legislature means a biennial report required by the legislature and filed in accordance with 5-11-210 on or
9 before September 1 of each year preceding the convening of a regular session of the legislature.

10 (b) If otherwise specified in law, a report may be required more or less frequently than the biennial
11 requirement in subsection (1)(a).

12 (2) Reports to the legislature include:

13 (a) annual reports on the unified investment program for public funds and public retirement
14 systems and state compensation insurance fund assets audits from the board of investments in accordance
15 with Article VIII, section 13, of the Montana constitution;

16 (b) federal mandates requirements from the governor in accordance with 2-1-407;

17 (c) activities of the state records committee in accordance with 2-6-1108;

18 (d) revenue studies from the director of revenue, if requested, in accordance with 2-7-104;

19 (e) legislative audit reports from the legislative audit division in accordance with 2-8-112 and 23-7-
20 410;

21 (f) the annual performance report of each department to the appropriate interim budget committee
22 and legislative policy interim committee in accordance with 2-12-105;

23 (g) progress on gender and racial balance from the governor in accordance with 2-15-108;

24 (h) a mental health report from the ombudsman in accordance with 2-15-210;

25 (i) policies related to children and families from the interagency coordinating council for state
26 prevention in accordance with 2-15-225;

27 (j) watercourse name changes, if any, from the secretary of state in accordance with 2-15-401;

28 (k) results of programs established in 2-15-3111 through 2-15-3113 from the livestock loss board

- 1 in accordance with 2-15-3113;
- 2 (l) the allocation of space report from the department of administration required in accordance
3 with 2-17-101;
- 4 (m) information technology activities in accordance with 2-17-512;
- 5 (n) state strategic information technology plan exceptions, if granted, from the department of
6 administration in accordance with 2-17-515;
- 7 (o) the state strategic information technology plan and biennial report from the department of
8 administration in accordance with 2-17-521 and 2-17-522;
- 9 (p) reports from standing, interim, and administrative committees, if prepared, in accordance with
10 2-17-825 and 5-5-216;
- 11 (q) statistical and other data related to business transacted by the courts from the court
12 administrator, if requested, in accordance with 3-1-702;
- 13 (r) the judicial standards commission report in accordance with 3-1-1126;
- 14 (s) an annual report on the actual cost of legislation that had a projected fiscal impact from the
15 office of budget and program planning in accordance with 5-4-208;
- 16 (t) a link to annual state agency reports on grants awarded in the previous fiscal year established
17 by the legislative finance committee in accordance with 5-12-208;
- 18 (u) reports prepared by the legislative fiscal analyst, and as determined by the analyst, in
19 accordance with 5-12-302(4);
- 20 (v) a report, if necessary, on administrative policies or rules adopted under 5-11-105 that may
21 impair the independence of the legislative audit division in accordance with 5-13-305;
- 22 (w) if a waste of state resources occurs, a report from the legislative state auditor, in accordance
23 with 5-13-311;
- 24 (x) school funding commission reports each fifth interim in accordance with 5-20-301;
- 25 (y) a report of political committee operations conducted on state-owned property, if required, from
26 a political committee to the legislative services division in accordance with 13-37-404;
- 27 (z) a report concerning taxable value from the department of revenue in accordance with 15-1-
28 205;

- 1 (aa) a report on tax credits from the revenue interim committee in accordance with 15-30-2303;
- 2 (bb) semiannual reports on the Montana heritage preservation and development account from the
- 3 Montana heritage preservation and development commission in accordance with 15-65-121;
- 4 (cc) general marijuana regulation reports and medical marijuana registry reports from the
- 5 department of revenue in accordance with 16-12-110;
- 6 (dd) annual reports on general fund and nongeneral fund encumbrances from the department of
- 7 administration in accordance with 17-1-102;
- 8 (ee) loans or loan extensions authorized for two consecutive fiscal years from the department of
- 9 administration and office of commissioner of higher education, including negative cash balances from the
- 10 commissioner of higher education, in accordance with 17-2-107;
- 11 (ff) a report of local government entities that have balances contrary to limitations provided for in
- 12 17-2-302 or that failed to reduce the charge from the department of administration in accordance with 17-2-304;
- 13 (gg) an annual report from the board of investments in accordance with 17-5-1650(2);
- 14 (hh) a quarterly report from the office of budget and program planning to the legislative finance
- 15 committee identifying the amount and the type of debt payoff or other expenditure from the debt and liability
- 16 free account in accordance with 17-6-214;
- 17 (ii) a report on retirement system trust investments and benefits from the board of investments in
- 18 accordance with 17-6-230;
- 19 (jj) recommendations for reductions in spending and related analysis, if required, from the office of
- 20 budget and program planning in accordance with 17-7-140;
- 21 (kk) a statewide facility inventory and condition assessment from the department of administration
- 22 in accordance with 17-7-202;
- 23 (ll) actuarial reports and investigations for public retirement systems from the public employees'
- 24 retirement board in accordance with 19-2-405;
- 25 (mm) a work report from the public employees' retirement board in accordance with 19-2-407;
- 26 (nn) annual actuarial reports and evaluations from the teachers' retirement board in accordance with
- 27 19-20-201;
- 28 (oo) reports from the state director of K-12 career and vocational and technical education, as

- 1 requested, in accordance with 20-7-308;
- 2 (pp) 5-year state plan for career and technical education reports from the board of regents in
- 3 accordance with 20-7-330;
- 4 (qq) a gifted and talented students report from the office of public instruction in accordance with 20-
- 5 7-904;
- 6 (rr) status changes for at-risk students from the office of public instruction in accordance with 20-9-
- 7 328;
- 8 (ss) status changes for American Indian students from the office of public instruction in accordance
- 9 with 20-9-330;
- 10 (tt) reports regarding the Montana Indian language preservation program from the office of public
- 11 instruction in accordance with 20-9-537;
- 12 (uu) proposals for funding community colleges from the board of regents in accordance with 20-15-
- 13 309;
- 14 (vv) expenditures and activities of the Montana agricultural experiment station and extension
- 15 service, as requested, in accordance with 20-25-236;
- 16 (ww) reports, if requested by the legislature, from the president of each of the units of the higher
- 17 education system in accordance with 20-25-305;
- 18 (xx) reports, if prepared by a public postsecondary institution, regarding free expression activities on
- 19 campus in accordance with 20-25-1506;
- 20 (yy) reports from the Montana historical society trustees in accordance with 22-3-107;
- 21 (zz) state lottery reports in accordance with 23-7-202;
- 22 (aaa) state fund reports, if required, from the commissioner in accordance with 33-1-115;
- 23 (bbb) reports from the department of labor and industry in accordance with 39-6-101;
- 24 (ccc) victim unemployment benefits reports from the department of labor and industry in accordance
- 25 with 39-51-2111;
- 26 (ddd) state fund business reports in accordance with 39-71-2363;
- 27 (eee) risk-based capital reports, if required, from the state fund in accordance with 39-71-2375;
- 28 (fff) child custody reports from the office of the court administrator in accordance with 41-3-1004;

- 1 (ggg) reports of remission of fine or forfeiture, respite, commutation, or pardon granted from the
2 governor in accordance with 46-23-316;
- 3 (hhh) annual statewide public defender reports from the office of state public defender in accordance
4 with 47-1-125;
- 5 (iii) a trauma care system report from the department of public health and human services in
6 accordance with 50-6-402;
- 7 (jjj) an annual report on chemical abortion data from the department of public health and human
8 services in accordance with 50-20-709;
- 9 (kkk) Montana criminal justice oversight council reports in accordance with 53-1-216;
- 10 (lll) medicaid block grant reports from the department of public health and human services in
11 accordance with 53-1-611;
- 12 (mmm) reports on the approval and implementation status of medicaid section 1115 waivers in
13 accordance with 53-2-215;
- 14 (nnn) provider rate, medicaid waiver, or medicaid state plan change reports from the department of
15 public health and human services in accordance with 53-6-101;
- 16 (ooo) medicaid funding reports from the department of public health and human services in
17 accordance with 53-6-110;
- 18 (ppp) proposals regarding managed care for medicaid recipients, if required, from the department of
19 public health and human services in accordance with 53-6-116;
- 20 (qqq) reports on toxicology and prescription drug registry information from the suicide prevention
21 officer in accordance with 53-21-1101;
- 22 (rrr) suicide reduction plans from the department of public health and human services in
23 accordance with 53-21-1102;
- 24 (sss) annual compliance reports from certifying organizations to the criminal justice oversight council
25 in accordance with 53-24-311;
- 26 (ttt) a compliance and inspection report from the department of corrections in accordance with 53-
27 30-604;
- 28 (uuu) emergency medical services grants from the department of transportation in accordance with

1 61-2-109;
2 (vvv) annual financial reports on the environmental contingency account from the department of
3 environmental quality in accordance with 75-1-1101;
4 (www) a report from the land board, if prepared, in accordance with 76-12-109;
5 (xxx) an annual state trust land report from the land board in accordance with 77-1-223;
6 (yyy) a noxious plant report, if prepared, from the department of agriculture in accordance with 80-7-
7 713;
8 (zzz) state water plans from the department of natural resources and conservation in accordance
9 with 85-1-203;
10 aaaa) reports on the allocation of renewable resources grants and loans for emergencies, if required,
11 from the department of natural resources and conservation in accordance with 85-1-605;
12 (bbbb) water storage projects from the governor's office in accordance with 85-1-704;
13 (cccc) upper Clark Fork River basin steering committee reports, if prepared, in accordance with 85-2-
14 338;
15 (dddd) upland game bird enhancement program reports in accordance with 87-1-250;
16 (eeee) private land/public wildlife advisory committee reports in accordance with 87-1-269;
17 (ffff) a future fisheries improvement program report from the department of fish, wildlife, and parks in
18 accordance with 87-1-272;
19 (gggg) license revenue recommendations from the department of fish, wildlife, and parks in
20 accordance with 87-1-629;
21 (hhhh) reports from the department of fish, wildlife, and parks on conservation licenses sold and
22 revenue received in accordance with 87-2-201;
23 (iiii) hydrocarbon and geology investigation reports from the bureau of mines and geology in
24 accordance with 90-2-201;
25 (jjjj) coal ash markets investigation reports from the department of commerce in accordance with
26 90-2-202;
27 (kkkk) an annual report from the pacific northwest electric power and conservation planning council in
28 accordance with 90-4-403;

(III) community property-assessed capital enhancements program reports from the Montana facility finance authority in accordance with 90-4-1303;

(mmmm) veterans' home loan mortgage loan reports from the board of housing in accordance with 90-6-604;

(nnnn) matching infrastructure planning grant awards by the department of commerce in accordance with 90-6-703(3); and

(oooo) Montana coal endowment program reports from the department of commerce in accordance with 90-6-710.

(3) Reports to the legislature include reports made to an interim committee as follows:

(a) reports to the law and justice interim committee, including:

(i) a report on fentanyl-related mandatory minimums from the attorney general in accordance with 2-15-505;

(ii) findings of the domestic violence fatality review commission in accordance with 2-15-2017;

(iii) the report from the missing indigenous persons review commission in accordance with 2-15-2018;

~~(iv) — reports from the department of justice and public safety officer standards and training council in accordance with 2-15-2029;~~

~~(v)~~ (iv) reports on district court judge caseload and substitutions from the office of court administrator in accordance with 3-1-713;

~~(vi)~~ (v) information on the Montana False Claims Act from the department of justice in accordance with 17-8-416;

~~(vii)~~ (vi) annual case status reports from the attorney general in accordance with 41-3-210;

~~(viii)~~ (vii) an annual report from the department of public health and human services on the number of referrals to county attorneys pursuant to 41-3-202(1)(b)(i) in accordance with 41-3-211;

~~(ix)~~ (viii) office of court administrator reports in accordance with 41-5-2003;

~~(x)~~ (ix) reports on pending investigations from the public safety officer standards and training council in accordance with 44-4-408 [section 6];

~~(xi)~~ (x) statewide public safety communications system activities from the department of justice in

- 1 accordance with 44-4-1606;
- 2 ~~(xii)~~ (xi) the annual report on the activities of the sexual assault response network program and the
- 3 sexual assault response team committee from the department of justice in accordance with 44-4-1705;
- 4 ~~(xiii)~~ (xii) reports on the status of the crisis intervention team training program from the board of
- 5 crime control in accordance with 44-7-110;
- 6 ~~(xiv)~~ (xiii) restorative justice grant program status and performance from the board of crime
- 7 control in accordance with 44-7-302;
- 8 ~~(xv)~~ (xiv) law enforcement agency facial recognition technology use reports from the department
- 9 of justice in accordance with 44-15-111(3);
- 10 ~~(xvi)~~ (xv) reports on third-party vendors providing facial recognition services to state agencies
- 11 reports in accordance with 44-15-111(4)(b);
- 12 ~~(xvii)~~ (xvi) reports on offenders under supervision with new offenses or violations from the
- 13 department of corrections in accordance with 46-23-1016;
- 14 ~~(xviii)~~ (xvii) supervision responses grid reports from the department of corrections in accordance
- 15 with 46-23-1028;
- 16 ~~(xix)~~ (xviii) statewide public defender reports and information from the office of state public
- 17 defender in accordance with 47-1-125;
- 18 ~~(xx)~~ (xix) every 5 years, a percentage change in public defender funding report from the
- 19 legislative fiscal analyst in accordance with 47-1-125;
- 20 ~~(xxi)~~ (xx) every 5 years, statewide public defender reports on the percentage change in funding
- 21 from the office of state public defender in accordance with 47-1-125; and
- 22 ~~(xxii)~~ (xxi) a report from the quality assurance unit from the department of corrections in
- 23 accordance with 53-1-211;
- 24 (b) reports to the state administration and veterans' affairs interim committee, including:
- 25 (i) a report that includes information technology activities and additional information from the
- 26 information technology board in accordance with 2-17-512 and 2-17-513;
- 27 (ii) a report from the capitol complex advisory council in accordance with 2-17-804;
- 28 (iii) a report on the employee incentive award program from the department of administration in

- 1 accordance with 2-18-1103;
- 2 (iv) a board of veterans' affairs report in accordance with 10-2-102;
- 3 (v) a report on the decennial veterans' long-term care needs study from the department of public
- 4 health and human services and the Montana veterans' affairs division in accordance with 10-2-903;
- 5 (vi) a report on grants to the Montana civil air patrol from the department of military affairs in
- 6 accordance with 10-3-802;
- 7 (vii) annual reports on statewide election security from the secretary of state in accordance with 13-
- 8 1-205;
- 9 (viii) reports on money received in the special account for implementing the Help America Vote Act
- 10 from the secretary of state in accordance with 13-1-209;
- 11 (ix) a report regarding the youth voting program, if requested, from the secretary of state in
- 12 accordance with 13-22-108;
- 13 (x) a report from the commissioner of political practices in accordance with 13-37-120;
- 14 (xi) a report on retirement system trust investments from the board of investments in accordance
- 15 with 17-6-230;
- 16 (xii) actuarial valuations and other reports from the public employees' retirement board in
- 17 accordance with 19-2-405 and 19-3-117;
- 18 (xiii) actuarial valuations and other reports from the teachers' retirement board in accordance with
- 19 19-20-201 and 19-20-216;
- 20 (xiv) a report on the reemployment of retired members of the teachers' retirement system from the
- 21 teachers' retirement board in accordance with 19-20-732; and
- 22 (xv) changes, if any, affecting filing-office rules under the Uniform Commercial Code from the
- 23 secretary of state in accordance with 30-9A-527;
- 24 (c) reports to the children, families, health, and human services interim committee, including:
- 25 (i) a report from the department of public health and human services on the programs, grants, and
- 26 services funded under the healing and ending addiction through recovery and treatment account in 16-12-122;
- 27 (ii) Montana foster youth higher education assistance program grant reports from the
- 28 commissioner of higher education in accordance with 20-26-633;

- 1 (iii) prescription drug registry reports from the board of pharmacy in accordance with 37-7-1514;
- 2 (iv) Montana HELP Act workforce development reports from the department of public health and
- 3 human services in accordance with 39-12-103;
- 4 (v) reports from the department of public health and human services on the department's efforts
- 5 regarding the volunteer program to support child protective services activities in accordance with 41-3-132;
- 6 (vi) annual reports from the child and family ombudsman in accordance with 41-3-1211;
- 7 (vii) reports on activities and recommendations on child protective services activities, if required,
- 8 from the child and family ombudsman in accordance with 41-3-1215;
- 9 (viii) reports on the out-of-state placement of high-risk children with multiagency service needs from
- 10 the department of public health and human services in accordance with 52-2-311;
- 11 (ix) private alternative adolescent residential and outdoor programs reports from the department of
- 12 public health and human services in accordance with 52-2-803;
- 13 (x) provider rate, medicaid waiver, or medicaid state plan change reports from the department of
- 14 public health and human services in accordance with 53-6-101;
- 15 (xi) a report from the department of public health and human services on home and community-
- 16 based services provider information in 53-6-406;
- 17 (xii) a report concerning mental health managed care services, if managed care is in place, from the
- 18 advisory council in accordance with 53-6-710;
- 19 (xiii) quarterly medicaid reports related to expansion from the department of public health and
- 20 human services in accordance with 53-6-1325;
- 21 (xiv) annual Montana developmental center reports from the department of public health and human
- 22 services in accordance with 53-20-225; and
- 23 (xv) annual children's mental health outcomes from the department of public health and human
- 24 services in accordance with 53-21-508;
- 25 (xvi) suicide reduction plans from the department of public health and human services in
- 26 accordance with 53-21-1102;
- 27 (d) reports to the economic affairs interim committee, including:
- 28 (i) the annual state compensation insurance fund budget from the board of directors in

- 1 accordance with 5-5-223 and 39-71-2363;
- 2 (ii) medical marijuana registry reports from the department of revenue in accordance with 16-12-
- 3 110;
- 4 (iii) general marijuana regulation reports from the department of revenue in accordance with 16-12-
- 5 110(3);
- 6 (iv) annual reports on complaints against physicians certifying medical marijuana use from the
- 7 board of medical examiners in accordance with 16-12-110(6);
- 8 (v) an annual report on the administrative rate required from the department of commerce from the
- 9 Montana heritage preservation and development commission in accordance with 22-3-1002;
- 10 (vi) biennial reports from the department of labor and industry on weighing device license fees and
- 11 cost increases in accordance with 30-12-203;
- 12 (vii) state fund reports from the insurance commissioner, if required, in accordance with 33-1-115;
- 13 (viii) risk-based capital reports, if required, from the state fund in accordance with 33-1-115 and 39-
- 14 71-2375;
- 15 (ix) annual reinsurance reports from the Montana reinsurance association board required in
- 16 accordance with 33-22-1308;
- 17 (x) reports from the department of labor and industry concerning board attendance in accordance
- 18 with 37-1-107;
- 19 (xi) annual reports on physician complaints related to medical marijuana from the board of medical
- 20 examiners in accordance with 37-3-203;
- 21 (xii) prescription drug registry reports from the board of pharmacy in accordance with 37-7-1514;
- 22 (xiii) status reports on the special revenue account and fees charged as a funding source from the
- 23 board of funeral service in accordance with 37-19-204;
- 24 (xiv) unemployment insurance program integrity act reports from the department of labor and
- 25 industry in accordance with 39-51-706;
- 26 (xv) law enforcement agency facial recognition technology use reports from the department of
- 27 justice in accordance with 44-15-111(3);
- 28 (xvi) reports on third-party vendors providing facial recognition services to state agencies reports in

- 1 accordance with 44-15-111(4)(b);
- 2 (xvii) status reports on the distressed wood products industry revolving loan program from the
- 3 department of commerce in accordance with 90-1-503;
- 4 (e) reports to the education interim committee, including:
- 5 (i) reemployment of retired teachers, specialists, and administrators reports from the retirement
- 6 board in accordance with 19-20-732;
- 7 (ii) a report on participation in the interstate compact on educational opportunity for military
- 8 children in accordance with 20-1-231;
- 9 (iii) grow your own grant program reports from the commissioner of higher education in accordance
- 10 with 20-4-601;
- 11 (iv) reports on out-of-district attendance from the superintendent of public instruction in accordance
- 12 with 20-5-324;
- 13 (v) reports from the education and workforce data governing board in accordance with 20-7-138;
- 14 (vi) state-level strengthening career and technical student organizations program reports from the
- 15 superintendent of public instruction in accordance with 20-7-320;
- 16 (vii) a report from the superintendent of public instruction concerning educational programs for
- 17 eligible children receiving in-state inpatient treatment of serious emotional disturbances in accordance with 20-
- 18 7-435;
- 19 (viii) reports from the Montana digital academy governing board in accordance with 20-7-1201;
- 20 (ix) advanced opportunity program reports from the board of public education in accordance with
- 21 20-7-1506;
- 22 (x) progress on transformational learning plans from the board of public education in accordance
- 23 with 20-7-1602;
- 24 (xi) reports on early literacy targeted interventions from the superintendent of public instruction in
- 25 accordance with 20-7-1804;
- 26 (xii) budget amendments, if needed, from school districts in accordance with 20-9-161;
- 27 (xiii) reports regarding the Montana Indian language preservation program from the office of public
- 28 instruction in accordance with 20-9-537;

- 1 (xiv) annual Montana resident student financial aid program reports from the commissioner of higher
2 education in accordance with 20-26-105;
- 3 (xv) Montana foster youth higher education assistance program grant reports from the
4 commissioner of higher education in accordance with 20-26-633;
- 5 (xvi) a historic preservation office report from the historic preservation officer in accordance with 22-
6 3-423; and
- 7 (xvii) interdisciplinary child information agreement reports from the office of public instruction in
8 accordance with 52-2-211;
- 9 (f) reports to the energy and telecommunications interim committee, including:
- 10 (i) the high-performance building report from the department of administration in accordance with
11 17-7-214;
- 12 (ii) an annual report from the consumer counsel in accordance with 69-1-222;
- 13 (iii) annual universal system benefits reports from utilities, electric cooperatives, and the
14 department of revenue in accordance with 69-8-402;
- 15 (iv) small-scale hydroelectric power generation reports from the department of natural resources
16 and conservation in accordance with 85-1-501; and
- 17 (v) geothermal reports from the Montana bureau of mines and geology in accordance with 90-3-
18 1301;
- 19 (g) reports to the revenue interim committee, including:
- 20 (i) use of the qualified endowment tax credit report from the department of revenue in accordance
21 with 15-1-230;
- 22 (ii) tax rates for the upcoming reappraisal cycle from the department of revenue in accordance with
23 15-7-111;
- 24 (iii) information about job growth incentive tax credits from the department of revenue in
25 accordance with 15-30-2361;
- 26 (iv) student scholarship contributions from the department of revenue in accordance with 15-30-
27 3112;
- 28 (v) media production tax credit economic impact reports from the department of commerce in

- 1 accordance with 15-31-1011; and
- 2 (vi) reports that actual or projected receipts will result in less revenue than estimated from the office
- 3 of budget and program planning, if necessary, in accordance with 17-7-140;
- 4 (h) reports to the transportation interim committee, including:
- 5 (i) biodiesel tax refunds from the department of transportation in accordance with 15-70-433;
- 6 (ii) cooperative agreement negotiations from the department of transportation in accordance with
- 7 15-70-450; and
- 8 (iii) a special fuels inspection report from the department of transportation in accordance with 61-
- 9 10-154;
- 10 (i) reports to the environmental quality council, including:
- 11 (i) compliance and enforcement reports required in accordance with 75-1-314;
- 12 (ii) the state solid waste management and resource recovery plan, every 5 years, from the
- 13 department of environmental quality in accordance with 75-10-111;
- 14 (iii) annual orphan share reports from the department of environmental quality in accordance with
- 15 75-10-743;
- 16 (iv) Libby asbestos superfund oversight committee reports in accordance with 75-10-1601;
- 17 (v) annual subdivision sanitation reports from the department of environmental quality in
- 18 accordance with 76-4-116;
- 19 (vi) quarterly reports from the department of environmental quality on the number and percentage
- 20 of overdue files in accordance with 76-4-116;
- 21 (vii) state trust land accessibility reports from the department of natural resources and conservation
- 22 in accordance with 77-1-820;
- 23 (viii) biennial land banking reports and annual state land cabin and home site sales reports from the
- 24 department of natural resources and conservation in accordance with 77-2-366;
- 25 (ix) biennially invasive species reports from the departments of fish, wildlife, and parks and natural
- 26 resources and conservation in accordance with 80-7-1006;
- 27 (x) annual invasive species council reports in accordance with 80-7-1203;
- 28 (xi) sand and gravel reports, if an investigation is completed, in accordance with 82-2-701;

- 1 (xii) reports from the western Montana conservation commission in accordance with 85-1-904;
- 2 (xiii) annual sage grouse population reports from the department of fish, wildlife, and parks in
- 3 accordance with 87-1-201;
- 4 (xiv) annual gray wolf management reports from the department of fish, wildlife, and parks in
- 5 accordance with 87-1-901;
- 6 (xv) biennial Tendoy Mountain sheep herd reports from the department of fish, wildlife, and parks in
- 7 accordance with 87-2-702;
- 8 (xvi) wildlife habitat improvement project reports from the department of fish, wildlife, and parks in
- 9 accordance with 87-5-807; and
- 10 (xvii) annual sage grouse oversight team activities and staffing reports in accordance with 87-5-918;
- 11 (j) reports to the water policy interim committee, including:
- 12 (i) drought and water supply advisory committee reports in accordance with 2-15-3308;
- 13 (ii) total maximum daily load reports from the department of environmental quality in accordance
- 14 with 75-5-703;
- 15 (iii) state water plans from the department of natural resources and conservation in accordance
- 16 with 85-1-203;
- 17 (iv) small-scale hydroelectric power generation reports from the department of natural resources
- 18 and conservation in accordance with 85-1-501;
- 19 (v) renewable resource grant and loan program reports from the department of natural resources
- 20 and conservation in accordance with 85-1-621;
- 21 (vi) reports from the western Montana conservation commission in accordance with 85-1-904;
- 22 (vii) quarterly adjudication reports from the department of natural resources and conservation and
- 23 the water court in accordance with 85-2-281;
- 24 (viii) water reservation reports from the department of natural resources and conservation in
- 25 accordance with 85-2-316;
- 26 (ix) instream flow reports from the department of fish, wildlife, and parks in accordance with 85-2-
- 27 436; and
- 28 (x) ground water investigation program reports from the bureau of mines and geology in

- 1 accordance with 85-2-525;
- 2 (k) reports to the local government interim committee, including:
- 3 (i) reports from the local government center on petitions received that resulted in the development
- 4 and delivery of training in accordance with 7-1-206;
- 5 (ii) sand and gravel, if an investigation is completed, in accordance with 82-2-701;
- 6 (iii) assistance to local governments on federal land management proposals from the department
- 7 of commerce in accordance with 90-1-182; and
- 8 (iv) emergency financial assistance to local government reports from the department of commerce,
- 9 if requests are made, in accordance with 90-6-703(2);
- 10 (l) reports to the state-tribal relations committee, including:
- 11 (i) reports from the missing indigenous persons review commission in accordance with 2-15-2018;
- 12 (ii) the Montana Indian language preservation program report from the office of public instruction in
- 13 accordance with 20-9-537;
- 14 (iii) reports from the missing indigenous persons task force in accordance with 44-2-411;
- 15 (iv) a report from the department of justice on missing persons response team training grants
- 16 awarded in accordance with 44-2-416;
- 17 (v) state-tribal economic development commission activities reports from the state-tribal economic
- 18 development commission in accordance with 90-1-132; and
- 19 (vi) state-tribal economic development commission reports provided regularly by the state director
- 20 of Indian affairs in accordance with 90-11-102.
- 21 (4) Reports to the legislature include multistate compact and agreement reports, including:
- 22 (a) multistate tax compact reports in accordance with 15-1-601;
- 23 (b) interstate compact on educational opportunity for military children reports in accordance with
- 24 20-1-230 and 20-1-231;
- 25 (c) compact for education reports in accordance with 20-2-501;
- 26 (d) Western regional higher education compact reports in accordance with 20-25-801;
- 27 (e) interstate insurance product regulation compact reports in accordance with 33-39-101;
- 28 (f) interstate medical licensure compact reports in accordance with 37-3-356;

(g) interstate compact on juveniles reports in accordance with 41-6-101;

(h) interstate compact for adult offender supervision reports in accordance with 46-23-1115;

(i) vehicle equipment safety compact reports in accordance with 61-2-201;

(j) multistate highway transportation agreement reports in accordance with 61-10-1101; and

(k) western interstate nuclear compact reports in accordance with 90-5-201.

(5) Reports, transfers, statements, assessments, recommendations and changes required under 17-7-138, 17-7-139, 17-7-140, 19-2-405, 19-2-407, 19-3-117, 19-20-201, 19-20-216, 23-7-202, 33-1-115, and 39-71-2375 must be provided as soon as the report is published and publicly available. Reports required in subsections (2)(a), (2)(gg), (2)(ii), and (3)(b)(xi) must be provided following issuance of reports issued under Title 5, chapter 13."

Section 9. Section 7-4-2904, MCA, is amended to read:

"7-4-2904. Qualifications for office of county coroner. (1) In addition to the qualifications set forth in 7-4-2201, to be eligible for the office of coroner, at the time of election or appointment to office a person must be a high school graduate or holder of an equivalency of completion of secondary education as provided by the superintendent of public instruction under 20-7-131 or of an equivalency issued by another state.

(2) Each coroner, before entering the duties of office, shall:

(a) take and file with the county clerk the constitutional oath of office; and

(b) certify to the county clerk that:

(i) the individual has successfully completed the basic coroner course of study as provided for in 7-4-2905 or that the individual has completed the equivalent educational requirements as approved by the public safety officer standards and training council established in ~~2-15-2029~~ [section 1]; or

(ii) the individual intends to take the basic coroner course at the next offering of the course if the coroner has been appointed or was elected by other than a local government general election and, from the date of appointment or election and assumption of the duties as coroner, a basic coroner course was not offered. A coroner forfeits office for failure to take and successfully complete the next offering of the basic coroner course."

1 **Section 10.** Section 7-4-2905, MCA, is amended to read:

2 **"7-4-2905. Coroner education and continuing education.** (1) Coroner education must be approved
3 by the Montana public safety officer standards and training council established in ~~2-15-2029~~ [section 1]. The
4 council may adopt rules establishing standards and procedures for basic and advanced education. The cost of
5 conducting the education must be borne by the department of justice from money appropriated for the
6 education. The county shall pay the salary, mileage, and per diem of each coroner-elect, coroner, and deputy
7 coroner attending from that county.

8 (2) (a) The council shall approve a 40-hour basic coroner course of study after each general
9 election. The course, or an equivalent course approved by the council, must be completed before the first
10 Monday in January following the election. The council may approve other basic coroner courses at times it
11 considers appropriate.

12 (b) The council shall approve a 16-hour continuing coroner education course. Unless there are
13 exigent circumstances, failure of any coroner or deputy coroner to satisfactorily complete the 16-hour
14 continuing coroner education course, or an equivalent course approved by the council, at least once every 2
15 years results in forfeiture of office. The council may adopt rules providing a procedure to extend the 2-year
16 period because of exigent circumstances."

17
18 **Section 11.** Section 7-31-201, MCA, is amended to read:

19 **"7-31-201. Definitions.** As used in this part, the following definitions apply:

20 (1) "Council" means the Montana public safety officer standards and training council provided for in
21 ~~2-15-2029~~ [section 1].

22 (2) "Public safety communications officer" means a person who receives requests for emergency
23 services, as defined in 10-4-101, dispatches the appropriate emergency service units, and is certified under 7-
24 31-203."

25
26 **Section 12.** Section 7-31-202, MCA, is amended to read:

27 **"7-31-202. Qualifications for public safety communications officers.** (1) To be appointed a public
28 safety communications officer, a person:

- 1 (1) (a) must be a citizen of the United States;
- 2 (2) (b) must be at least 18 years of age;
- 3 (3) (c) must be fingerprinted and a search must be made of local, state, and national fingerprint files to
- 4 disclose any criminal record;
- 5 (4) (d) may not have been convicted of a crime for which the person could have been imprisoned in a
- 6 federal or state penitentiary;
- 7 (5) (e) must be of good moral character, as determined by a thorough background investigation;
- 8 (6) (f) must be a high school graduate or have been issued a high school equivalency diploma by the
- 9 superintendent of public instruction or by an appropriate issuing agency of another state or of the federal
- 10 government; and
- 11 (7) (g) must meet any additional qualifications established by the council.

12 (2) The provisions of 37-1-203 and 37-1-205 do not apply to certification determinations made

13 under this section."

14

15 **Section 13.** Section 7-31-203, MCA, is amended to read:

16 **"7-31-203. Certification of public safety communications officers -- ~~suspension or revocation --~~**

17 **~~penalty~~ -- notification requirements.** (1) A local government shall require that a person, unless exempt under

18 subsection (3), appointed to receive requests for emergency services, as defined in 10-4-101, and to dispatch

19 the appropriate emergency service units be certified by the council as a public safety communications officer.

20 (2) (a) The council shall determine the certification standards for public safety communications

21 officers as provided in 7-31-202.

22 (b) The certification standards must contain a requirement that an applicant for certification attend

23 and successfully complete a basic course for public safety communications officers conducted by the Montana

24 law enforcement academy within 1 year of date of hire.

25 (3) (a) A person certified by the council prior to July 1, 2001, and employed as a public safety

26 communications officer as of July 1, 2001, is not subject to the requirement of subsection (2)(b).

27 (b) A person under permanent appointment as a public safety communications officer as of July 1,

28 2001, is not subject to the requirements of subsection (2).

(4) A public safety communications officer who has successfully met the certification standards set by the council, or who is exempt from certain certification standards pursuant to subsection (3), who has met the qualification requirements in 7-31-202, and who has completed a 6-month probationary term and 1 year of employment must, upon application to the council, be issued a basic public safety communications officer certificate.

(5) Failure by any person appointed as a public safety communications officer after July 1, 2001, unless exempt under the provisions of subsection (3), to meet the minimum requirements in 7-31-202 or to satisfy the certification requirements provided for in subsection (2) of this section is cause to terminate that person's employment as a public safety communications officer.

~~(6) — It is unlawful for a person whose certification as a public safety communications officer has been suspended or revoked by the council to act as a public safety communications officer. A person convicted of violating this subsection is guilty of a misdemeanor, punishable by a term of imprisonment not to exceed 6 months in the county jail or by a fine in an amount not to exceed \$500, or both.~~

(7) (6) Within 10 days of the appointment, termination, resignation, or death of any public safety communications officer, written notice must be given to the council by the employing authority."

Section 14. Section 7-32-201, MCA, is amended to read:

"7-32-201. Definitions. As used in this part, the following definitions apply:

(1) "Auxiliary officer" means an unsworn, part-time, volunteer member of a law enforcement agency who may perform but is not limited to the performance of such functions as civil defense, search and rescue, office duties, crowd and traffic control, and crime prevention activities.

(2) "Council" means the Montana public safety officer standards and training council established in ~~2-15-2029~~ [section 1].

(3) "General law enforcement duties" means patrol operations performed for detection, prevention, and suppression of crime and the enforcement of criminal and traffic codes of this state and its local governments.

(4) "Law enforcement agency" means a law enforcement service provided directly by a local government.

(5) "Law enforcement officer" means a sworn, full-time, employed member of a law enforcement agency who is a peace officer, as defined in 46-1-202, and has arrest authority, as described in 46-6-210.

(6) "Reserve officer" means a sworn, part-time, volunteer member of a law enforcement agency or a part-time, paid member of a law enforcement agency serving as a court officer as provided in 3-6-303. The volunteer member or the part-time paid member is a peace officer, as defined in 46-1-202, and has arrest authority, as described in 46-6-210, only when authorized to perform these functions as a representative of the law enforcement agency.

(7) "Special services officer" means an unsworn, part-time, volunteer member of a law enforcement agency who may perform functions, other than general law enforcement duties, that require specialized skills, training, and qualifications, who may be required to train with a firearm, and who may carry a firearm while on assigned duty as provided in 7-32-239."

Section 15. Section 7-32-213, MCA, is amended to read:

"7-32-213. Qualifications for appointment as reserve officer. (1) To be appointed a reserve officer, a person:

(4) (a) must have resided in the state continuously for at least 1 year prior to the appointment and in the county where the appointment is made for a period of at least 6 months prior to the date of the appointment;

(2) (b) must be a citizen of the United States;

(3) (c) must be at least 18 years of age;

(4) (d) must be fingerprinted, and a search must be made of local, state, and national fingerprint files to disclose any criminal record;

(5) (e) may not have been convicted of a crime for which the person could have been imprisoned in a federal penitentiary or state prison;

(6) (f) must be of good moral character as determined by a thorough background investigation;

(7) (g) must be a graduate of an accredited high school or the equivalent;

(8) (h) must be examined by a licensed physician within 30 days immediately preceding the date of appointment and pronounced in good physical condition; and

(9) (i) must possess a valid Montana driver's license.

1 (2) The provisions of 37-1-203 and 37-1-205 do not apply to certification determinations made
2 under this section."

3
4 **Section 16.** Section 7-32-303, MCA, is amended to read:

5 **"7-32-303. Peace officer employment, education, and certification standards -- suspension or**
6 **revocation -- penalty.** (1) For purposes of this section, unless the context clearly indicates otherwise, "peace
7 officer" means a deputy sheriff, undersheriff, police officer, highway patrol officer, fish and game warden, park
8 ranger, campus security officer, motor carrier services enforcement officer, or airport police officer.

9 (2) A sheriff of a county, the mayor of a city, a board, a commission, or any other person
10 authorized by law to appoint peace officers in this state may not appoint a person as a peace officer who does
11 not meet the qualifications provided in this subsection (2) plus any additional qualifying standards for
12 employment promulgated by the Montana public safety officer standards and training council established in 2-
13 15-2029 [section 1]. A peace officer must:

14 (a) be a citizen of the United States;

15 (b) be at least 18 years of age;

16 (c) be fingerprinted and a search made of the local, state, and national fingerprint files to disclose
17 any criminal record;

18 (d) not have been convicted of a crime for which the person could have been imprisoned in a
19 federal or state penitentiary;

20 (e) be of good moral character, as determined by a thorough background investigation;

21 (f) be a high school graduate or have been issued a high school equivalency diploma by the
22 superintendent of public instruction or by an appropriate issuing agency of another state or of the federal
23 government;

24 (g) be free of any mental condition that might adversely affect performance of the duties of a
25 peace officer, as determined after:

26 (i) a mental health evaluation performed by a licensed physician or a mental health professional
27 who is licensed by the state under Title 37, who is acting within the scope of the person's licensure when
28 performing a mental health evaluation, who is not the applicant's personal physician or licensed mental health

1 professional, and who is selected by the employing authority; or

2 (ii) satisfactory completion of a standardized mental health evaluation instrument determined by
3 the employing authority to be sufficient to examine for any mental conditions within the meaning of this
4 subsection (2)(g), if the instrument is scored by a licensed physician or a mental health professional acting
5 within the scope of the person's licensure by a state;

6 (h) be free of any physical condition that might adversely affect performance of the duties of a
7 peace officer, as determined after satisfactory completion of a physical examination performed by a health care
8 provider who is licensed by the state under Title 37 and acting within the scope of the person's licensure when
9 performing the physical examination, who is not the applicant's personal health care provider, and who is
10 selected by the employing authority;

11 (i) have successfully completed an oral examination conducted by the appointing authority or its
12 designated representative to demonstrate the possession of communication skills, temperament, motivation,
13 and other characteristics necessary to the accomplishment of the duties and functions of a peace officer;

14 (j) possess or be eligible for a valid Montana driver's license; and

15 (k) be certified or be eligible for certification as a peace officer by the council or become eligible for
16 certification upon completion of the requirements contained in subsections (6) through (10).

17 (3) At the time of appointment, a peace officer shall take the formal oath of office prescribed in
18 Article III, section 3, of the Montana constitution. No other oath may be required.

19 (4) Within 10 days of the appointment, termination, resignation, or death of a peace officer, written
20 notice of the event must be given to the Montana public safety officer standards and training council by the
21 employing authority.

22 (5) It is the duty of an appointing authority in Montana to ensure that each peace officer appointed
23 under its authority has the basic training, including any training required in subsections (6) through (8), in
24 addition to meeting all other requirements of peace officer certification promulgated by the Montana public
25 safety officer standards and training council. Any peace officer appointed after September 30, 1983, who fails to
26 meet the minimum requirements as set forth in subsection (2) or who fails to complete the basic training
27 required by subsections (6) through (8) forfeits the position, authority, and arrest powers accorded a peace
28 officer in this state.

1 (6) Except as provided in subsections (7) and (8), a peace officer shall successfully complete the
2 peace officer basic course at the Montana law enforcement academy, as approved by the council, within 1 year
3 of:

4 (a) the peace officer's initial appointment as a peace officer; or

5 (b) the peace officer's most recent appointment as a peace officer if the peace officer has had a
6 break in service as a peace officer of more than 5 years.

7 (7) (a) If a peace officer previously satisfied the requirement in subsection (6), is certified or is
8 eligible for certification as a peace officer in Montana or may become eligible for certification upon completion of
9 the probationary period in subsection (10), and has had a break in service as a peace officer of less than 3
10 years, the peace officer is not required to satisfy the requirement in subsection (6) or to attend an equivalency
11 course prior to returning to work in Montana as a peace officer.

12 (b) If a peace officer previously satisfied the requirement in subsection (6), is certified or is eligible
13 for certification as a peace officer in Montana or may become eligible for certification upon completion of the
14 probationary period in subsection (10), and has been continuously employed as a peace officer outside of
15 Montana for no more than 3 years, the peace officer is not required to satisfy the requirement in subsection (6)
16 or to attend an equivalency course prior to returning to work in Montana as a peace officer.

17 (c) If a peace officer previously completed the peace officer basic course successfully, is certified
18 or is eligible for certification as a peace officer in Montana or may become eligible for certification upon
19 completion of the probationary period in subsection (10), and has been continuously employed as a peace
20 officer outside of Montana for more than 3 years or who has had a break in service as a peace officer for more
21 than 3 years but less than 5 years, the peace officer shall successfully complete the peace officer basic
22 equivalency course, as approved by the council, within 1 year of the peace officer's most recent appointment as
23 a peace officer in Montana. If the peace officer fails the basic equivalency course, the officer shall satisfy the
24 requirement in subsection (6) at the next available opportunity.

25 (d) If a person satisfied the requirement in subsection (6) prior to the person's appointment or
26 employment and is hired or appointed as a peace officer more than 3 years but less than 5 years after the date
27 that the person satisfied the requirement in subsection (6), the person shall successfully complete the peace
28 officer basic equivalency course, as approved by the council, within 1 year of the person's most recent

1 appointment or employment as a peace officer. If the person is not appointed or employed as a peace officer
2 within 5 years after the date of the person's successful completion of the requirement in subsection (6), the
3 person shall satisfy the requirement in subsection (6) within 1 year of the person's most recent appointment or
4 employment as a peace officer in Montana.

5 (8) (a) Except as provided in subsection (8)(c), if a peace officer has successfully completed a
6 peace officer basic course that is taught or approved by a federal, state, local, or United States military law
7 enforcement agency, that satisfies the peace officer basic training requirement for that agency, and that the
8 council has reviewed and approved as commensurate with the current peace officer basic course offered at the
9 Montana law enforcement academy, the peace officer shall successfully complete the peace officer basic
10 equivalency course, as approved by the council, within 1 year of the officer's initial appointment in Montana. If
11 the officer fails the basic equivalency course, the officer must satisfy the requirement in subsection (6) at the
12 next available opportunity.

13 (b) Except as provided in subsection (8)(c), if a peace officer has successfully completed a peace
14 officer basic course that is taught or approved by a federal, state, local, or United States military law
15 enforcement agency and that satisfies the peace officer basic training requirement for that agency and if that
16 peace officer's combined training and experience have been reviewed and approved by the council as
17 commensurate with the current peace officer basic course offered at the Montana law enforcement academy,
18 the peace officer shall successfully complete the peace officer basic equivalency course, as approved by the
19 council, within 1 year of the officer's initial appointment in Montana. If the officer fails the basic equivalency
20 course, the officer must satisfy the requirement in subsection (6) at the next available opportunity.

21 (c) If the peace officer has had a break in service as a peace officer for more than 5 years, the
22 officer shall complete the requirement of subsection (6) within 1 year of the officer's initial appointment as a
23 peace officer in Montana.

24 (9) The Montana public safety officer standards and training council may extend the 1-year time
25 requirements of subsections (6) through (8) upon the written application of the appointing authority of the
26 officer. The application must explain the circumstances that make the extension necessary. Factors that the
27 council may consider in granting or denying the extension include but are not limited to illness of the peace
28 officer or a member of the peace officer's immediate family, absence of reasonable access to the basic

1 equivalency course, and an unreasonable shortage of personnel within the department. The council may not
2 grant an extension to exceed 180 days.

3 (10) A peace officer who has successfully met the training, employment, and educational standards
4 of this section, has successfully met the training and employment standards set by the council, and has
5 completed a 1-year probationary term of employment must be issued a peace officer basic certificate by the
6 council certifying that the peace officer has met all of the basic qualifying peace officer standards of this state.

7 ~~(11)——It is unlawful for a person whose basic certification as a peace officer has been revoked or
8 denied by the Montana public safety officer standards and training council for misconduct to act as a peace
9 officer. It is unlawful for a person whose peace officer basic certification has been suspended by the council to
10 act or be appointed or employed as a peace officer in Montana during the period in which the certification is
11 suspended. A person convicted of violating this subsection is guilty of a misdemeanor, punishable by a term of
12 imprisonment not to exceed 6 months in the county jail or by a fine not to exceed \$500, or both.~~

13 (11) The provisions of 37-1-203 and 37-1-205 do not apply to certification determinations made
14 under this section."

15
16 **Section 17.** Section 7-32-4112, MCA, is amended to read:

17 **"7-32-4112. Qualifications of police officers.** A member of a police department on the active list of
18 any city at the time of appointment under this part may not be less than 18 years of age, must be a citizen of
19 the United States, and must meet the minimum qualifying standards for employment promulgated by the
20 Montana public safety officer standards and training council established in 2-15-2029 [section 1]."

21
22 **Section 18.** Section 19-7-101, MCA, is amended to read:

23 **"19-7-101. Definitions.** Unless the context requires otherwise, the following definitions apply in this
24 chapter:

25 (1) (a) "Compensation" means remuneration paid from funds controlled by an employer for the
26 member's services or for time during which the member is excused from work because the member has taken
27 compensatory leave, sick leave, annual leave, or a leave of absence before any pretax deductions allowed by
28 state or federal law are made.

1 (b) Compensation does not include:

2 (i) maintenance, allowances, and expenses; or

3 (ii) bonuses provided after July 1, 2013, that are one-time, temporary payments in addition to and
4 not considered part of base pay.

5 (2) "Detention officer" means any detention officer who is hired by a sheriff, employed in a
6 detention center, and acting as a detention officer for the sheriff and who has received or is expected to receive
7 training to meet the employment standards set for detention officers by the Montana public safety officer
8 standards and training council established in 2-15-2029 [section 1].

9 (3) (a) "Highest average compensation" means:

10 (i) for members hired prior to July 1, 2011, the member's highest average monthly compensation
11 during any 36 consecutive months of membership service;

12 (ii) for members hired on or after July 1, 2011, the highest average compensation during any 60
13 consecutive months of membership service; or

14 (iii) if a member has not served the minimum specified period of membership service as applicable
15 in subsection (3)(a)(i) or (3)(a)(ii), the total compensation earned divided by the number of months of service.

16 (b) Lump-sum payments for compensatory leave, sick leave, and annual leave paid to the member
17 upon termination of employment may be used in the calculation of a retirement benefit only to the extent that
18 they are used to replace, on a month-for-month basis, the normal compensation for a month or months included
19 in the calculation of the highest average compensation. A lump-sum payment may not be added to a single
20 month's compensation.

21 (c) Excess earnings limits must be applied to the calculation of the highest average compensation
22 pursuant to 19-2-1005(2).

23 (4) "Investigator" means a person who is employed by the department of justice as a criminal
24 investigator or as a gambling investigator.

25 (5) "Sheriff" means any elected or appointed county sheriff or undersheriff or any appointed,
26 lawfully trained, appropriately salaried, and full-time deputy sheriff with the requisite professional certification
27 and licensing."
28

1 **Section 19.** Section 20-7-1335, MCA, is amended to read:

2 **"20-7-1335. School marshal program -- qualifications.** (1) The board of trustees may appoint an
3 independent contractor or a school district employee to be certified as a school marshal. The appointed
4 employee must be a full-time employee of the district.

5 (2) A school marshal may be:

6 (a) employed full-time as a school marshal; or

7 (b) retained on a full-time or part-time basis and may have other assigned duties in the discretion
8 of the board of trustees.

9 (3) To be eligible to serve as a school marshal, the independent contractor or school district
10 employee must:

11 (a) have a permit to carry a concealed weapon pursuant to 45-8-321;

12 (b) meet the qualifications required for peace officers pursuant to 7-32-303; and

13 (c) be an active or retired peace officer as defined in 46-1-202.

14 (4) If an applicant for a school marshal position is an active or retired public safety officer from
15 another state, the applicant must be certified by the Montana public safety officer standards and training
16 council.

17 (5) For the purposes of 20-7-1335 through 20-7-1338, the following definitions apply:

18 (a) "Montana public safety officer standards and training council" means the council established in
19 ~~2-15-2029~~ [section 1].

20 (b) "Public school property" has the meaning provided in 20-1-220.

21 (c) "School marshal" means a person who is appointed by the board of trustees and employed or
22 retained by a school district to protect the health and safety of persons and to maintain order on public school
23 property."
24

25 **Section 20.** Section 27-16-801, MCA, is amended to read:

26 **"27-16-801. Immigration detainer requests -- arrest authority and duty to arrest.** (1) A public
27 safety officer as defined in ~~44-4-404~~(2) [section 2] who is in possession of an immigration detainer request
28 issued by a federal immigration agency shall arrest a person who is already in custody and the subject of an

1 immigration detainer request;

2 (2) As used in this section, the following definitions apply:

3 (a) (i) "Federal immigration agency" means the United States department of justice, the United
4 States department of homeland security, and any division, agency, or other component of either of those
5 departments, including but not limited to United States immigration and customs enforcement, United States
6 customs and border protection, United States citizenship and immigration services, and any successor
7 department, division, agency or other component.

8 (ii) The term includes officials, officers, representatives, agents, and employees.

9 (b) "Immigration detainer request" means a written or electronic request issued by a federal
10 immigration agency to detain and maintain control of an alien.

11 (3) In executing an arrest pursuant to an immigration detainer request, a public safety officer shall:

12 (a) comply with, honor, and fulfill any request made in the detainer request provided by the federal
13 government; and

14 (b) inform the person to whom the immigration detainer request applies that the person is being
15 held pursuant to an immigration detainer request issued by a federal immigration agency.

16 (4) A public safety officer is not required to arrest or detain a person if presented with credible
17 evidence that the person is a citizen of the United States or that the person has lawful immigration status in the
18 United States.

19 (5) To meet the duty established in this section, a public safety officer may not maintain custody of
20 a person subject to a detainer for longer than 48 hours, excluding weekends and holidays, beyond the time that
21 the person would otherwise have been released from custody."

22

23 **Section 21.** Section 41-5-1808, MCA, is amended to read:

24 **"41-5-1808. Juvenile detention or juvenile corrections officer training.** A juvenile detention or
25 juvenile corrections officer shall, in the first year of employment, complete a basic training course as required in
26 ~~44-4-403 [section 3]~~. The training must be done under the auspices of the Montana law enforcement academy
27 but does not have to occur at the academy."

28

1 **Section 22.** Section 44-2-117, MCA, is amended to read:

2 **"44-2-117. Racial profiling prohibited -- definitions -- policies -- complaints -- training.** (1) A
3 peace officer may not engage in racial profiling.

4 (2) The race or ethnicity of an individual may not be the sole factor in:

5 (a) determining the existence of probable cause to take into custody or arrest an individual; or

6 (b) constituting a particularized suspicion that an offense has been or is being committed in order
7 to justify the detention of an individual or the investigatory stop of a motor vehicle.

8 (3) Each law enforcement agency shall adopt a policy on race-based traffic stops that:

9 (a) prohibits the practice of routinely stopping members of minority groups for violations of vehicle
10 laws as a pretext for investigating other violations of criminal law;

11 (b) provides for periodic reviews by the law enforcement agency and collection of data that
12 determine whether any peace officers of the law enforcement agency have a pattern of stopping members of
13 minority groups for violations of vehicle laws in a number disproportionate to the population of minority groups
14 residing or traveling within the jurisdiction of the law enforcement agency;

15 (c) if the review under subsection (3)(b) reveals a pattern, requires an investigation to determine
16 whether any peace officers of the law enforcement agency routinely stop members of minority groups for
17 violations of vehicle laws as a pretext for investigating other violations of criminal law.

18 (4) (a) Each municipal, county, consolidated local government, and state law enforcement agency
19 shall adopt a detailed written policy that clearly defines the elements constituting racial profiling. Each agency's
20 policy must prohibit racial profiling, require that all stops are lawful under 46-5-401, and require that all stops
21 are documented according to subsection (3) of this section.

22 (b) The policy must include a procedure that the law enforcement agency will use to address
23 written complaints concerning racial profiling. The complaint procedure must require that:

24 (i) all written complaints concerning racial profiling be promptly reviewed;

25 (ii) a person is designated who shall review all written complaints of racial profiling;

26 (iii) the designated person shall, within 10 days of receipt of a written complaint, acknowledge
27 receipt of the complaint in writing; and

28 (iv) after a review is completed, the designated person shall, in writing, inform the person who

1 submitted the written complaint and the head of the agency of the results of the review.

2 (c) The policy must be available for public inspection during normal business hours.

3 (5) Each municipal, county, consolidated local government, and state law enforcement agency
4 shall require for all of its peace officers cultural awareness training and training in racial profiling. The training
5 program must be certified by the Montana public safety officer standards and training council established in 2-
6 15-2029 [section 1].

7 (6) Each law enforcement agency may provide for appropriate counseling and training of any
8 peace officer found to have engaged in race-based traffic stops within 90 days of the review. The course or
9 courses of instruction and the guidelines must stress understanding and respect for racial and cultural
10 differences and development of effective, noncombative methods of carrying out law enforcement duties in a
11 racially and culturally diverse environment.

12 (7) If an investigation of a complaint of racial profiling reveals that a peace officer was in direct
13 violation of the law enforcement agency's written policy prohibiting racial profiling, the law enforcement agency
14 shall take appropriate action against the peace officer consistent with applicable laws, rules, ordinances, or
15 policies.

16 (8) For the purposes of this section, the following definitions apply:

17 (a) "Minority group" means individuals of African American, Hispanic, Native American, Asian, or
18 Middle Eastern descent.

19 (b) "Peace officer" has the meaning provided in 46-1-202.

20 (c) "Racial profiling" means the detention, official restraint, or other disparate treatment of an
21 individual solely on the basis of the racial or ethnic status of the individual.

22 (9) The department of justice shall make available to the public information regarding the degree of
23 compliance by municipal, county, consolidated local government, and state law enforcement agencies with the
24 requirements of this section.

25 (10) Each law enforcement agency in this state may use federal funds from community-oriented
26 policing services grants or any other federal sources to equip each vehicle used for traffic stops with a video
27 camera and voice-activated microphone."
28

1 **Section 23.** Section 44-4-902, MCA, is amended to read:

2 **"44-4-902. Application for appointment.** A class I railroad corporation, as defined by the interstate
3 commerce commission in part 1201 of 49 CFR, desiring the appointment of an officer or employee as a special
4 peace officer shall apply to the attorney general. The application must state the name, age, and place of
5 residence of the person applying for appointment. The applicant must have at least 3 years of experience as a
6 class I railroad peace officer or have completed a training course at an approved law enforcement academy, or
7 meet the qualifications described in 7-32-303 and adopted pursuant to ~~Title 44, chapter 4, part 4~~ sections 2
8 through 7. The application must be signed by the applicant and a managing officer of the railroad corporation.
9 The managing officer signing the application shall at the same time submit an affidavit to the effect that the
10 officer is acquainted with the person seeking appointment, that the officer believes the applicant to be of good
11 moral character, and that the applicant is of good moral character and has experience such that the applicant
12 can be safely entrusted with the powers and duties of a special peace officer."

13
14 **Section 24.** Section 44-10-204, MCA, is amended to read:

15 **"44-10-204. Department of justice account established.** (1) There is an account in the state special
16 revenue fund to be used by the department of justice on behalf of the Montana law enforcement academy
17 established in 44-10-103 ~~and the Montana public safety officer standards and training council established in 2-~~
18 ~~15-2029.~~

19 (2) Money in the account created in subsection (1) must be appropriated by the legislature for the
20 purposes provided in Title 44, chapter 10, part 2, including use as matching funds for grants to be sought under
21 44-10-202(1)(j)."

22
23 **Section 25.** Section 44-14-101, MCA, is amended to read:

24 **"44-14-101. Disposition of property held by state public safety officer -- rulemaking.** (1) A state
25 agency that employs a public safety officer may adopt administrative rules to provide for the care, restitution,
26 sale, donation, return, or destruction of unclaimed tangible personal property that may come into the
27 possession of the agency or a public safety officer employed by the agency for which state law does not
28 otherwise provide a procedure for disposition.

- 1 (2) At a minimum, the ordinance or resolution must provide:
- 2 (a) that unclaimed property valued at \$20 or more must be held by the state agency for a period of
- 3 at least 3 months;
- 4 (b) a process by which the state agency shall attempt to notify the legal owner of unclaimed
- 5 property held in its possession;
- 6 (c) a process by which the state agency may allow a finder of unclaimed personal property to take
- 7 possession of that property if it remains unclaimed;
- 8 (d) that unclaimed property will be destroyed as allowed or required by local, state, or federal law,
- 9 returned to the finder, donated, or otherwise sold at public auction to the highest bidder;
- 10 (e) that, at least 10 days prior to the time fixed for the destruction, return, donation, or sale at
- 11 public auction of unclaimed property, notice of the planned disposal must be given by publication one time in a
- 12 newspaper of general circulation; and
- 13 (f) that, upon proof of legal ownership, the state agency shall restore the unclaimed property to its
- 14 legal owner.
- 15 (3) After property has been destroyed, returned, donated, or sold at public auction, the property or
- 16 the value of the property is not redeemable by the owner or another person entitled to possession.
- 17 (4) For the purposes of this section, "public safety officer" has the meaning provided in ~~44-4-401~~
- 18 [section 2]."
- 19

20 **Section 26.** Section 46-6-507, MCA, is amended to read:

- 21 **"46-6-507. Arrest by probation and parole officer or corrections officer.** (1) A probation and
- 22 parole officer who, while in the course of conducting the officer's duties, has a reasonable suspicion that a
- 23 person is interfering or will interfere with the officer's duties or has probable cause to believe that the person is
- 24 committing or has committed an offense may detain the person. The probation and parole officer shall
- 25 immediately notify the nearest available law enforcement agency or peace officer, and the law enforcement
- 26 agency or peace officer shall either take the person into custody or release the person.
- 27 (2) A corrections officer employed by the department of corrections pursuant to ~~44-4-401(2)(a)~~
- 28 [section 2(3)(a)] who, while in the course of conducting the officer's duties on the property of a state correctional

1 facility for adults or juveniles, has reasonable suspicion to believe a person is committing or has committed a
2 violation of 45-6-203, 45-7-306, or 45-7-307 or is aiding or abetting an offender in violation of 45-6-203, 45-7-
3 306, or 45-7-307, may detain the person. The corrections officer shall immediately notify the nearest available
4 law enforcement agency or peace officer, and the law enforcement agency or peace officer shall either take the
5 person into custody or release the person."

6
7 **Section 27.** Section 46-18-111, MCA, is amended to read:

8 **"46-18-111. Presentence investigation -- when required -- definition.** (1) (a) (i) Upon the
9 acceptance of a plea or upon a verdict or finding of guilty to one or more felony offenses, except as provided in
10 subsection (1)(d), the district court may request and direct the probation and parole officer to make a
11 presentence investigation and report unless an investigation and report has been provided to the court prior to
12 the plea or the verdict or finding of guilty.

13 (ii) Unless additional information is required under subsection (1)(b), (1)(c), (1)(d), or (1)(e) or
14 unless more time is required to allow for victim input, a preliminary or final presentence investigation and report,
15 if requested, must be available to the court within 30 business days of the plea or the verdict or finding of guilty.

16 (iii) If a presentence investigation report has been requested, the district court shall consider the
17 presentence investigation report prior to sentencing.

18 (b) (i) If the defendant was convicted of an offense under 45-5-502, 45-5-503, 45-5-504, 45-5-507,
19 45-5-508, 45-5-601(3), 45-5-625, 45-5-627, 45-5-705, 45-5-706, 45-5-711, or 45-8-218 or if the defendant was
20 convicted under 46-23-507 and the offender was convicted of failure to register as a sexual offender pursuant
21 to Title 46, chapter 23, part 5, the court shall order a psychosexual evaluation of the defendant unless the
22 defendant is sentenced under 46-18-219. The evaluation must include:

23 (A) a recommendation as to treatment of the defendant in the least restrictive environment,
24 considering the risk the defendant presents to the community and the defendant's needs;

25 (B) an identification of the level of risk the defendant presents to the community using the
26 standards established in 37-1-139; and

27 (C) the defendant's needs.

28 (ii) Unless a psychosexual evaluation has been provided to the court prior to the plea or the verdict

1 or finding of guilty, the evaluation must be completed by a sexual offender evaluator selected by the court and
2 who has a license endorsement as provided for in 37-1-139. The psychosexual evaluation must be made
3 available to the county attorney's office, the defense attorney, the probation and parole officer, and the
4 sentencing judge.

5 (iii) All costs related to the evaluation, including an evaluation ordered by the court as allowed in
6 subsection (1)(b)(ii), must be paid by the defendant. If the defendant is determined by the district court to be
7 indigent, all costs related to the evaluation, including an evaluation ordered by the court as allowed in
8 subsection (1)(b)(ii), are the responsibility of the district court and must be paid by the county or the state, or
9 both, under Title 3, chapter 5, part 9. The district court may order subsequent psychosexual evaluations at the
10 request of the county attorney. The requestor of any subsequent psychosexual evaluations is responsible for
11 the cost of the evaluation.

12 (c) (i) If the defendant was convicted of an offense under 45-5-212(2)(b) or (2)(c), the investigation
13 may include a mental health evaluation of the defendant and a recommendation as to treatment of the
14 defendant in the least restrictive environment, considering the risk the defendant presents to the community
15 and the defendant's needs.

16 (ii) The evaluation must be completed by a qualified psychiatrist, licensed clinical psychologist,
17 advanced practice registered nurse, licensed clinical social worker, licensed clinical professional counselor,
18 licensed marriage and family therapist, or other professional with comparable credentials acceptable to the
19 department of labor and industry. The mental health evaluation must be made available to the county attorney's
20 office, the defense attorney, the probation and parole officer, and the sentencing judge.

21 (iii) All costs related to the evaluation must be paid by the defendant. If the defendant is
22 determined by the district court to be indigent, all costs related to the evaluation are the responsibility of the
23 district court and must be paid by the county or the state, or both, under Title 3, chapter 5, part 9.

24 (d) If the defendant is convicted of a violent offense, as defined in 46-23-502, or if the defendant is
25 convicted of a crime for which a victim or entity may be entitled to restitution, and the amount of restitution is not
26 contained in a plea agreement, the court shall order a presentence investigation.

27 (e) When, pursuant to 46-14-311, the court has ordered a presentence investigation and a report
28 pursuant to this section, the mental evaluation must be attached to the presentence investigation report and

1 becomes part of the report. The report must be made available to persons and entities as provided in 46-18-
2 113.

3 (2) The district court may order a presentence investigation for a defendant convicted of a
4 misdemeanor only if the defendant was convicted of a misdemeanor that the state originally charged as a
5 sexual or violent offense as defined in 46-23-502.

6 (3) The defendant shall pay to the department of corrections a \$50 fee at the time that the report is
7 completed, unless the court determines that the defendant is not able to pay the fee within a reasonable time.
8 The fee may be retained by the department and used to finance contracts entered into under 53-1-203(5).

9 (4) For the purposes of 46-18-112 and this section, "probation and parole officer" means:

10 (a) a probation and parole officer who is employed by the department of corrections pursuant to
11 46-23-1002; or

12 (b) an employee of the department of corrections who has received specific training or who
13 possesses specific expertise to make a presentence investigation and report but who is not required to be
14 licensed as a probation and parole officer by the public safety officer standards and training council created in
15 2-15-2029 [section 1]."

16
17 **Section 28.** Section 46-23-1003, MCA, is amended to read:

18 **"46-23-1003. Qualifications of probation and parole officers.** (1) (a) Probation and parole officers
19 must have at least a college degree and some formal training in behavioral sciences. Exceptions to this rule
20 must be approved by the department. Related work experience in the areas listed in subsection (1)(b) may be
21 substituted for educational requirements at the rate of 1 year of experience for 9 months formal education if
22 approved by the department. All present employees are exempt from this requirement but are encouraged to
23 further their education at the earliest opportunity.

24 (b) Work experience that may be substituted for the educational requirements in subsection (1)(a)
25 includes experience in the areas of criminology, education, medicine, psychiatry, psychology, law, law
26 enforcement, social work, sociology, psychiatric nursing, or guidance and counseling.

27 (2) Each probation and parole officer shall, through a source approved by the officer's employer,
28 obtain 16 hours a year of training in subjects relating to the powers and duties of probation officers, at least 1

1 hour of which must include training on serious mental illness and recovery from serious mental illness. In
2 addition, each probation and parole officer must receive training in accordance with standards adopted by the
3 Montana public safety officer standards and training council established in ~~2-15-2029~~ [section 1]. The training
4 must be at the Montana law enforcement academy unless the council finds that training at some other place is
5 more appropriate."

6
7 **Section 29.** Section 61-3-224, MCA, is amended to read:

8 **"61-3-224. Temporary registration permit -- issuance -- placement -- fees.** (1) (a) The department,
9 an authorized agent, or a county treasurer may issue a temporary registration permit for any purpose
10 authorized under the rules adopted by the department.

11 (b) An authorized agent or a county treasurer may issue a temporary registration permit without
12 use of the department-approved electronic interface only if authorized by the department.

13 (2) A person, using a department-approved electronic interface, may issue a temporary registration
14 permit for any purpose authorized under the rules adopted by the department.

15 (3) A temporary registration permit issued under this section must contain the following
16 information:

17 (a) a temporary plate number as prescribed by the department;

18 (b) the expiration date of the temporary registration permit; and

19 (c) if required by the department, a description of the motor vehicle, trailer, semitrailer, pole trailer,
20 motorboat, personal watercraft, sailboat, or snowmobile, including year, make, model, and vehicle identification
21 number, the name of the person from whom ownership of the motor vehicle, trailer, semitrailer, pole trailer,
22 motorboat, personal watercraft, sailboat, or snowmobile was transferred, the name, mailing address, and
23 residence address of the person to whom ownership of the motor vehicle, trailer, semitrailer, pole trailer,
24 motorboat, personal watercraft, sailboat, or snowmobile has been transferred, and the date of issuance.

25 (4) A temporary registration permit for:

26 (a) a motor vehicle, trailer, semitrailer, or pole trailer must be plainly visible and firmly attached to
27 the rear exterior of the vehicle where a license plate is required to be displayed; and

28 (b) a motorboat, a sailboat that is 12 feet in length or longer, a snowmobile, or an off-highway

1 vehicle must be plainly visible and firmly attached to the vehicle or vessel.

2 (5) (a) Except as provided in 61-3-431 and subsections (5)(b) and (5)(c) of this section, a \$19.50
3 fee is imposed upon issuance of a temporary registration permit by the department, an authorized agent, or a
4 county treasurer. The fee must be paid by the owner of the vehicle or vessel and collected by the department,
5 the authorized agent, or a county treasurer when the vehicle is registered.

6 (b) Except as provided in 61-3-431, a fee of \$24.50 is imposed and must be paid upon issuance of
7 a temporary registration permit by:

8 (i) the department, an authorized agent, or a county treasurer to a nonresident of this state who
9 acquires a vehicle or vessel in this state or who registers for temporary use in this state a quadricycle or
10 motorcycle designed for off-road recreational use; or

11 (ii) a person who issued a temporary registration permit using a department-approved electronic
12 interface.

13 (c) A fee of \$24 is imposed and must be paid upon issuance of a temporary registration permit for
14 a 90-day temporary registration permit as provided in 61-3-303(4)(b).

15 (6) The fees imposed under this section, upon collection, must be forwarded to the state and
16 deposited as follows:

17 (a) ~~\$16.50~~ from each permit fee collected pursuant to subsection (5);

18 (i) \$14.50 in the state special revenue account established in 44-10-204; and

19 (ii) \$2.00 in the state special revenue account established in [section 7]; and

20 (b) the remainder in the motor vehicle electronic commerce operating account provided for in 61-3-
21 118.

22 (7) If a temporary registration permit is issued under this section to a person to whom ownership of
23 a vehicle or vessel has been transferred, the permitholder shall title and register the vehicle or vessel in this or
24 another jurisdiction before the ownership of the vehicle or vessel may be transferred to another person."

25

26 NEW SECTION. Section 30. Repealer. The following sections of the Montana Code Annotated are
27 repealed:

28 2-15-2029. Montana public safety officer standards and training council -- administrative attachment --

1 rulemaking.

2 44-4-401. Definitions.

3 44-4-402. Membership -- composition.

4 44-4-403. Council duties -- determinations -- appeals.

5 44-4-404. Appointing authority responsible for applying standards.

6 44-4-408. Investigations report.

7

8 NEW SECTION. Section 31. Transition. The legislature directs the department of justice to assist
9 the department of labor and industry with the transfer of FTE, information, materials, and any other related
10 assets that the department of labor and industry considers necessary to implement the regulation of and
11 exercise the authority over the Montana public safety officer standards and training council.

12

13 NEW SECTION. Section 32. Codification instruction. (1) [Section 1] is intended to be codified as
14 an integral part of Title 2, chapter 15, part 17, and the provisions of Title 2, chapter 15, part 17, apply to [section
15 1].

16 (2) [Sections 2 through 7] are intended to be codified as a new chapter in Title 37, and the
17 provisions of Title 37 apply to [sections 2 through 7].

18

19 COORDINATION SECTION. Section 33. Coordination instruction. If Senate Bill No. 324 and [this
20 act] are passed and approved, and if Senate Bill No. 324 contains a section that amends 61-3-321, a section
21 that establishes a victims of crime state special revenue account, and a section that establishes a better local
22 bridge state special revenue account, then the section amending 61-3-321 is void and must be amended as
23 follows:

24 **"61-3-321. Registration fees of vehicles and vessels -- certain vehicles exempt from**
25 **registration fees -- disposition of fees -- definition.** (1) Except as otherwise provided in this section,
26 registration fees must be paid upon registration or, if applicable, renewal of registration of motor vehicles,
27 snowmobiles, watercraft, trailers, semitrailers, and pole trailers as provided in subsections (2) through (20).

28 (2) (a) Except as provided in subsection (2)(b), unless a light vehicle is permanently registered

under 61-3-562, the annual registration fee for light vehicles, trucks, and buses that weigh 1 ton or less and for logging trucks that weigh 1 ton or less is as follows:

- (i) if the vehicle is 4 or less years old, \$217;
- (ii) if the vehicle is 5 through 10 years old, \$87; and
- (iii) if the vehicle is 11 or more years old, \$28.

(b) For a light vehicle with a manufacturer's suggested retail price of more than ~~\$150,000~~ \$200,000 that is 10 years old or less, the annual registration fee is the amount provided for in subsection (2)(a) plus ~~\$825~~.

:

(i) prior to January 1, 2026, \$825; and

(ii) beginning January 1, 2026:

(A) \$1,000 for the first year of registration in the state; and

(B) \$825 a year for each year afterward until the vehicle is 11 years old or older.

(3) (a) Except as provided in subsections (3)(b) and (15), the one-time registration fee based on the declared weight of a trailer, semitrailer, or pole trailer is as follows:

- (i) if the declared weight is less than 6,000 pounds, \$61.25; or
- (ii) if the declared weight is 6,000 pounds or more, \$148.25.

(b) For a trailer, semitrailer, or pole trailer that is registered under 61-3-701, the annual registration fee based on the declared weight is as follows:

- (i) if the declared weight is less than 6,000 pounds, \$30; or
- (ii) if the declared weight is 6,000 pounds or more, \$60.

(4) Except as provided in subsection (15), the one-time registration fee for motor vehicles owned and operated solely as collector's items pursuant to 61-3-411, based on the weight of the vehicle, is as follows:

- (a) 2,850 pounds and over, \$10; and
- (b) under 2,850 pounds, \$5.

(5) (a) Except as provided in subsections (5)(b) and (15), the one-time registration fee for off-highway vehicles other than a quadricycle or motorcycle is \$61.25.

(b) Whenever a valid summer motorized recreation trail pass issued pursuant to 23-2-111 is affixed to an off-highway vehicle other than a quadricycle or motorcycle, the one-time registration fee is \$41.25.

- 1 (6) The annual registration fee for heavy trucks, buses, and logging trucks in excess of 1 ton is
 2 \$22.75.
- 3 (7) (a) Except as provided in subsection (7)(c), the annual registration fee for a motor home, based
 4 on the age of the motor home, is as follows:
- 5 (i) less than 2 years old, \$282.50;
 6 (ii) 2 years old and less than 5 years old, \$224.25;
 7 (iii) 5 years old and less than 8 years old, \$132.50; and
 8 (iv) 8 years old and older, \$97.50.
- 9 (b) The owner of a motor home that is 11 years old or older and that is subject to the registration
 10 fee under this section may permanently register the motor home upon payment of:
- 11 (i) a one-time registration fee of \$237.50;
 12 (ii) unless a new set of license plates is being issued, an insurance verification fee of \$5, which
 13 must be deposited in the account established under 61-6-158;
 14 (iii) if applicable, five times the renewal fees for personalized license plates under 61-3-406; and
 15 (iv) if applicable, the donation fee for a generic specialty license plate under 61-3-480 or a
 16 collegiate license plate under 61-3-465.
- 17 (c) For a motor home with a manufacturer's suggested retail price of more than ~~\$300,000~~
 18 \$400,000 that is 10 years old or less, the annual registration fee is the amount provided in subsection (7)(a)
 19 plus:
- 20 (i) prior to January 1, 2026, \$800- ; and
 21 (ii) beginning January 1, 2026:
 22 (A) \$950 for the first year of registration in the state; and
 23 (B) \$800 a year for each year afterward until the vehicle is 11 years old or older.
- 24 (8) (a) (i) Except as provided in subsections (8)(b), (8)(c), and (15), the one-time registration fee for
 25 motorcycles and quadricycles registered for use on the public highways is \$53.25, the one-time registration fee
 26 for motorcycles and quadricycles registered for off-highway use is \$53.25, and the one-time registration fee for
 27 motorcycles and quadricycles registered for both off-road use and for use on the public highways is \$114.50.
 28 (ii) An additional fee of \$16 must be collected for the registration of each motorcycle or quadricycle

1 as a safety fee, which must be deposited in the state motorcycle safety account provided for in 20-25-1002.

2 (b) (i) The annual registration fee for motorcycles and quadricycles registered for use on the public
3 highways under 61-3-701 is \$44.

4 (ii) The annual registration fee for motorcycles and quadricycles registered for off-highway use
5 under 61-3-701 is \$44.

6 (iii) The annual registration fee for motorcycles and quadricycles registered for both off-road use
7 and for use on the public highways under 61-3-701 is \$88.

8 (iv) An additional safety fee of \$7 must be collected annually for each motorcycle or quadricycle
9 registered under 61-3-701. The safety fee must be deposited in the state motorcycle safety account provided
10 for in 20-25-1002.

11 (c) Whenever a valid summer motorized recreation trail pass issued pursuant to 23-2-111 is
12 affixed to a motorcycle or quadricycle, the one-time registration fee for motorcycles and quadricycles registered
13 for:

14 (i) use on the public highways is \$33.25; and

15 (ii) both off-road use and for use on the public highways is \$94.50.

16 (9) Except as provided in subsection (15), the one-time registration fee for travel trailers, based on
17 the length of the travel trailer, is as follows:

18 (a) under 16 feet in length, \$72; and

19 (b) 16 feet in length or longer, \$152.

20 (10) Except as provided in subsection (15), the one-time registration fee for a motorboat, sailboat,
21 personal watercraft, or motorized pontoon required to be numbered under 23-2-512 is as follows:

22 (a) for a personal watercraft or a motorboat, sailboat, or motorized pontoon less than 16 feet in
23 length, \$65.50;

24 (b) for a motorboat, sailboat, or motorized pontoon at least 16 feet in length but less than 19 feet in
25 length, \$125.50; and

26 (c) for a motorboat, sailboat, or motorized pontoon 19 feet in length or longer, \$295.50.

27 (11) (a) Except as provided in subsections (11)(b), (11)(c), and (15), the one-time registration fee for
28 a snowmobile is \$60.50.

1 (b) Whenever a valid winter trail pass issued pursuant to 23-2-636 is affixed to a snowmobile, the
2 one-time registration fee is \$40.50.

3 (c) (i) A snowmobile that is licensed by a Montana business and is owned exclusively for the
4 purpose of daily rental to customers is assessed:

5 (A) a fee of \$40.50 in the first year of registration; and

6 (B) if the business reregisters the snowmobile for a second year, a fee of \$20.

7 (ii) If the business reregisters the snowmobile for a third year, the snowmobile must be
8 permanently registered and the business is assessed the registration fee imposed in subsection (11)(a).

9 (12) (a) The one-time registration fee for a low-speed electric vehicle is \$25.

10 (b) The one-time registration fee for a golf cart that is owned by a person who has or is applying for
11 a low-speed restricted driver's license is \$25.

12 (c) The one-time registration fee for golf carts authorized to operate on certain public streets and
13 highways pursuant to 61-8-391 is \$25. Upon receipt of the fee, the department shall issue the owner a decal,
14 which must be displayed visibly on the golf cart.

15 (13) (a) Except as provided in subsection (13)(b), a fee of \$12 must be collected when a new set of
16 standard license plates, a new single standard license plate, or a replacement set of special license plates
17 required under 61-3-332 is issued. The fee imposed under this subsection (13)(a) does not apply when
18 previously issued license plates are transferred under 61-3-335. All registration fees imposed under this section
19 must be paid if the vehicle to which the plates are transferred is not currently registered.

20 (b) An additional fee of \$16 must be collected if a vehicle owner elects to keep the same license
21 plate number from license plates issued before January 1, 2010, when replacement of those plates is required
22 under 61-3-332(3).

23 (c) The fees imposed in this subsection (13) must be deposited in the account established under
24 61-6-158, except that \$2 of the fee imposed in subsection (13)(a) must be deposited in the state general fund.

25 (14) The provisions of this part with respect to the payment of registration fees do not apply to and
26 are not binding upon motor vehicles, trailers, semitrailers, snowmobiles, watercraft, or tractors owned or
27 controlled by the United States of America or any state, county, city, or special district, as defined in 18-8-202,
28 or to a vehicle or vessel that meets the description of property exempt from taxation under 15-6-201(1)(a),

1 (1)(d), (1)(e), (1)(g), (1)(h), (1)(i), (1)(k), (1)(l), (1)(n), or (1)(o), 15-6-203, or 15-6-215, except as provided in 61-
2 3-520.

3 (15) Whenever ownership of a trailer, semitrailer, pole trailer, off-highway vehicle, motorcycle,
4 quadricycle, travel trailer, motor home, motorboat, sailboat, personal watercraft, motorized pontoon,
5 snowmobile, motor vehicle owned and operated solely as a collector's item pursuant to 61-3-411, or low-speed
6 electric vehicle is transferred, the new owner shall title and register the vehicle or vessel as required by this
7 chapter and pay the fees imposed under this section.

8 (16) A person eligible for a waiver under 61-3-460 is exempt from the fees required under this
9 section.

10 (17) Except as otherwise provided in this section, revenue collected under this section must be
11 deposited in the state general fund.

12 (18) The fees imposed by subsections (2) through (12) are not required to be paid by a dealer for
13 the enumerated vehicles or vessels that constitute inventory of the dealership.

14 (19) (a) Unless a person exercises the option in either subsection (19)(b) or (19)(c), an additional
15 fee of \$9 must be collected for each light vehicle registered under this part. This fee must be accounted for and
16 transmitted separately from the registration fee. Of the \$9 fee:

17 (i) \$6.74 must be deposited in the state special revenue account established in 23-1-105 and
18 used for state parks;

19 (ii) 50 cents must be deposited in an account in the state special revenue fund to the credit of the
20 department of fish, wildlife, and parks and used for fishing access sites;

21 (iii) \$1.37 must be deposited in the trails and recreation facilities state special revenue account
22 established in 23-2-108; and

23 (iv) 39 cents must be deposited in the Montana heritage preservation and development account
24 established in 22-3-1004 and used for the operation of state-owned facilities at Virginia City and Nevada City.

25 (b) A person who registers a light vehicle may, at the time of annual registration, certify that the
26 person does not intend to use the vehicle to visit state parks and fishing access sites and may make a written
27 election not to pay the additional \$9 fee provided for in subsection (19)(a). If a written election is made, the fee
28 may not be collected.

(c) (i) A person who registers one or more light vehicles may, at the time of annual registration, certify that the person does not intend to use any of the vehicles to visit state parks and fishing access sites and may make a written election not to pay the additional \$9 fee provided for in subsection (19)(a). If a written election is made, the fee may not be collected at any subsequent annual registration unless the person makes the written election to pay the additional fee on one or more of the light vehicles.

(ii) The written election not to pay the additional fee on a light vehicle expires if the vehicle is registered to a different person.

(20) For each light vehicle, trailer, semitrailer, pole trailer, heavy truck, motor home, motorcycle, quadricycle, and travel trailer subject to a registration fee under this section, an additional fee of \$10 must be collected and forwarded to the state for deposit as follows:

(a) \$8 must be deposited in the account established in 44-1-504; and

(b) \$2 must be deposited in the victims of crime state special revenue account established in [section 4 of Senate Bill No. 324].

(21) (a) If a person exercises the option in subsection (21)(b), an additional fee of \$5 must be collected for each light vehicle registered under this part. This fee must be accounted for and transmitted separately from the registration fee. The fee must be deposited in an account in the state special revenue fund. Funds in the account are statutorily appropriated, as provided in 17-7-502, to the department of transportation and must be allocated as provided in 60-3-309.

(b) A person who registers one or more light vehicles may, at the time of annual registration, make a written or electronic election to pay the additional \$5 fee provided for in subsection (21)(a).

(22) This section does not apply to a motor vehicle, trailer, semitrailer, or pole trailer that is governed by 61-3-721.

(23) (a) ~~The \$800 and \$825~~ For the fiscal year beginning July 1, 2025, the total amounts collected ~~based on the manufacturer's suggested retail price in pursuant to~~ subsections (2) and (7) are exempt from the provisions of 15-1-122 and must be deposited as follows:

(i) 38% must be deposited in the account established in 44-1-504; and

(ii) 62% must be deposited in the motor vehicle division administration account established in 61-3-112.

1 (b) For the fiscal years beginning July 1, 2026, and each fiscal year afterward, the total amounts
2 collected pursuant to subsections (2) and (7) of this section are exempt from the provisions of 15-1-122 and
3 must be deposited as follows:

4 (i) the first \$700,000 to the public safety officer standards and training council account established
5 in [section 7 of this act];

6 (ii) the remaining amount above \$700,00 as follows:

7 (A) 19% must be deposited in the account established in 44-1-504;

8 (B) 57% must be deposited in the motor vehicle division administration account established in 61-
9 3-112; and

10 (C) 24% must be deposited in the better local bridge fund established in [section 5 of Senate Bill
11 No. 324].

12 (b) (c) By August 15 of each year, beginning in the fiscal year beginning July 1, 2019, the department
13 of justice shall deposit into the general fund an amount equal to the fiscal yearend balance minus 25% of the
14 current fiscal year appropriation for the account established in 61-3-112.

15 (24) For the purposes of this section, "manufacturer's suggested retail price" means the price
16 suggested by a manufacturer for each given type, style, or model of a light vehicle or motor home produced and
17 first made available for retail sale by the manufacturer."

18
19 **NEW SECTION. Section 34. Effective date.** [This act] is effective July 1, 2026.

20 - END -